

Before the
U.S. COPYRIGHT OFFICE, LIBRARY OF CONGRESS

In the Matter of
Section 1201 Study; Request for Additional Comments
Docket No. 2015-8

Reply Comments of the Electronic Frontier Foundation

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The Electronic Frontier Foundation thanks the Copyright Office for considering possible legislative and administrative fixes to address some of the problems caused by Section 1201 of the Digital Millennium Copyright Act. These problems are now well-documented in this policy study, six triennial rulemakings, and in Congressional hearings. The Office cannot accept major entertainment companies' insistence that Section 1201 is "not broken"¹ when librarians, educators, electronics repair specialists, security researchers, aftermarket equipment industries, creative professionals, and many others have provided detailed evidence of all the ways the statute is, in fact, broken. That Section 1201 impacts so many stakeholders in such diverse fields illustrates why the Copyright Office cannot base its policy recommendations on the interests of the entertainment industry alone.

The comments of the Copyright Alliance illustrate one of the fundamental problems with Section 1201: "[T]ools ostensibly meant for legal purposes can always be used for unlawful purposes."² This is as true for digital tools as it is for screwdrivers and crowbars, yet the law does not give the manufacturers of those "analog" tools any private right to control their use and sale. Regulating multi-purpose tools, rather than targeting unlawful *uses* of those tools, always leads to overreach.

¹ Assoc. of American Publishers, et al. Comments at 2.

² Copyright Alliance Comments at 3.

The Copyright Alliance suggested in its comments that simply raising the issue of the inadequacy of the current statutory exemptions shows that they should not be amended, and that all future exemptions should be done through the triennial process.³ This is wrong for two reasons. First, most of the current permanent exemptions were not simply rendered obsolete by the passage of time. From their inception, they were so narrow, qualified, and subjective as to be essentially useless for the communities they were meant to protect. The solution, as EFF explained in its October comments, is for Congress to make the permanent exemptions broader and simpler, basing them not on a litany of non-copyright concerns but on the *non-infringing* nature of the underlying conduct. Second, this policy study has revealed numerous, largely intractable problems with the triennial rulemaking. It is simply not an adequate “safety valve” for important, widespread, and otherwise lawful uses of ubiquitous copyrighted works.

Finally, the Office has asked whether some forms of third-party assistance with circumvention are permitted under current law. In response, several of the comments in this study have implied or assumed, without any evidence or reasoning, that all such assistance constitutes “trafficking” as defined in Section 1201 (a)(2) and (b).⁴ Each of these comments ignores the substantial statutory limitations within the anti-trafficking provisions: they apply only when the product or service at issue

(A) is primarily designed or produced for the purpose of circumventing a technological measure that effectively controls access to a work protected under this title;

(B) has only limited commercially significant purpose or use other than to circumvent a technological measure that effectively controls access to a work protected under this title; or

(C) is marketed by that person or another acting in concert with that person with that person's knowledge for use in circumventing a technological measure that effectively controls access to a work protected under this title.⁵

These important limitations must be given meaning. Many forms of third-party assistance fall outside these limitations and thus are not trafficking—particularly repair activities. The Office cast doubt on the legality of common electronics and automobile repair services during last year’s rulemaking with its unsolicited stance on third-party assistance, and the Office should rectify that by issuing a clarification.

³ Copyright Alliance Comments at 2.

⁴ Software and Information Industry Assoc. Comments at 3-4; DVD CCA and AACLS LA Comments at 8; Copyright Alliance Comments at 4; Assoc. of American Publishers et al. Comments at 4-5.

⁵ 17 U.S.C. § 1201(a)(2); § 1201(b) contains similar language.